MODULE IV

THEORIES OF PUNISHMENT

Objectives

1. To introduce theories of punishment
2. To introduce the relevance of punishment as act of justice.
3. To explain Retributive theory of punishment
4. To explain Reformative theory of punishment
5. To explain Deterrent theory of punishment

Introduction to theories of punishment

When person commits sinful act he should bear the consequences of it, evil act will some way affect the perpetrator. When a man commits wrong acts, it lowers him in his scale of being and this can actually hurt him more than any other person could wrong him.

A person should be rewarded based upon his deeds, since a virtuous man is in the way of human progress, gods bless him in his journey, hence he will ultimately prosper. Since the vicious man is against God's wishes so it is unnatural that his way will prosper. The wicked may seem to flourish but in the long journey their initial success may go in vain. These aspects require rational consideration if they have to maintain a ground in the higher consciousness of humankind. Reward and punishment take their origin in such natural thoughts. When moral consciousness of human being develops, the feelings of personal resentments among people become less keen. The infinite importance given to personal wrongs shortens and he finds that under certain circumstances there is possibility of forgiveness. The case of social law is however different where a wrong doing is not forgiven until the majesty of the law has been appeased. Since the wrong done is against humanity as a whole. The action must be nullified and made apparent. It is in this context that justification for punishment is made.

In the deterrent theory of punishment, the following dictum holds " you are not punished for stealing sheep, but in order that sheep may not be stolen".

if this is the reason for being punished it seems probable that, with the development of moral consciousness would be abolished soon: since inflicting pain on a person just for the benefit of others is like treating the individual as an object.

The humanitarian sentiments of this age usually recommend the reformative theory, here the intention of punishment is to educate of reform the offender himself. Looking from this point of view it can hardly be used to justify penalty of death. Also, other forms of punishment would have to be regarded as ineffective from this view. It is probable that in many instances reformative theory seem to have better effect than punishment.

The retributive theory allows man's deed to return on his own head, when there is direct involvement of the person in an evil act, the consequences of his evil act have affected the lives of others. Retributive view of punishment accords best with the origin of punishment among early people. During later times in Christian countries there was tendency to opt for reformative and deterrent form of justice.

Revenge was forbidden in Christian belief on account of the feeling of malevolence which is involved in it. But if a court of justice inflicts retribution on account of the evil act the person has done then this does not involve such a feeling. If the person has done evil act then it should return to himself as the wages of his sin.

The laws of the society are little more than the injunctions or recommendations to its citizens. If it was like recommendations then they would not have the force of imperatives. Absolute imperatives must either be able to prevent any violation of their commands, any violation of imperatives in such cases there should be some way to vindicate their authority. The real repentance of the offender happens when he realizes that the punishment accorded to him was the natural outcome of his act. This thought also leads others to recognize and leads others to real abhorrence of crime as distinct from fear of consequences. These outcomes makes us regard retributive theory as the most satisfactory theory of punishment.

In order to justify punishment three principal theories are put forward, they are

Retributive theory, Deterrence theory and Reformative theory.

4.1 Retributive theory -

According to this theory punishment is an act of justice, punishment here is seen as an end in itself and not a means to any end beyond itself. The prime aim of punishing the culprit is retribution. In order to get justice for the victim, the supreme authority of the moral law should be respected and defended.

The criminal voluntarily breaks the moral law hence he should be punished, so that the authority of the moral law is established. The moral law is supreme and authoritative. Punishment is inflicted on the offender neither for his good nor for the good of others. It is demanded by the sense of justice.

The retributive theory justifies capital punishment under exceptional circumstances.

Rights to live are the fundamental right. If a person takes away the life of another, justice demands that he should be deprived of his life. But capital punishment is generally condemned at the present time.

The retributive theory assumes two forms: (1) Rigoristic and (2) Mollified. According to its Rigoristic form, punishment is inflicted according to the character of the offence. If the

offence is severe, the punishment should be severe; and if the offence is light, the punishment should be light, irrespective of other circumstances. 'Eye for an eye',- 'tooth for a tooth',-is motto of this view. In inflicting punishment attended circumstances should not be taken into account. For example, a man killed a person; therefore he should be hanged

irrespective of any other circumstances. According mollified form, punishment should be inflicted according to the character of the offence under particular circumstances. Here

the extenuating circumstances, e. g., the age of the criminal, his intention. Provoking circumstances, etc., should be taken

into account.

4.1.1 Capital punishment -

If a person deliberately commits murder, deterrent theorists favours capital punishment, since the person has deprived a person of his right to live, he should be hanged to prevent others from committing such crimes in future. In such cases retributive theorists also favour capital punishment. He has taken away life of a person in cold blood. So justice demands that he be deprived of his life. There is nothing unjust in this act of justice. There is no concession made by the rigorous form of retributive theory in such cases. But the mollified form of it recommends taking into consideration the criminal's age, provocation, education, and other extenuating circumstances in softening the rigour of justice. In the contemporary age of humanitarian sentiments, the trend of enlightened public opinion is against capital punishment and for replacing it by transportation for life

4.2 The Deterrent theory -

A criminal is punished to be made an example of to prevent others from committing the same crime. Here the intention of punishment is to prevent others from making similar offences. This theory justifies capital punishment as an extreme form of punishment because of its deterrent effect. A man has taken the life of another man. So he ought to be deprived of his life.

Since man is a person and not a thing,he should not be used as the means for good for other persons. Inflicting pain on a person for the benefit of others is seen as unjust. He should not be made an example of for the benefit of others. It is not just that one man should suffer pain not for his own benefit, but for that of others. But it may be said in defence of the deterrent

theory that sometimes punishment of a criminal has a deterrent effect on the criminal himself, so that he is not treated as a mere means for the good of the others.

Classical philosophers such as Thomas Hobbes (1588-1678), Cesare Beccaria (1738-1794), and Jeremy Bentham (1748-1832) advanced the deterrent idea of punishment. 'Discouraging' is the dictionary definition of deterrent.

Deterrence in criminology is defined as the preventive effect that real or threatened punishment of criminals has on potential offenders.

The act of punishment on offenders in a way dissuades them from committing a crime in their initial place. By providing enough penalties and exemplary punishment to offenders creates fear in the minds of others hence it keeps them away from criminal activity. The punishment by the state serves as adequate deterrent to both offenders and others. It is based upon the belief that if the criminal is not punished, the crime will spread rapidly. Also it will generate a sense of vengeance in others who would not hesitate to perpetrate a crime.

In order to prevent subsequent violations by the offenders,Bentham takes in to account the commited crimes as past deed which is utilised for punishing the offender. It means that the goal of punishment is to demostrate that crime is not lucrative to the criminal.John Locke observes that by punishing the culprit, crime is made an "an ill bargain to the offender".

This in a way also makes the rest of the world learn that crime is a costly way to achieve a goal.This is the way by which state use fear psychology to create terror in its citizens and there by dissuade them from commiting crimes.

According to John Ball, the following elements influence the deterrent effect of a particular sort of punishment.

1. The social structure and value system in concern;

2. The citizens in question;

3. The type of law upheld;

4. The nature and severity of the specified penalty;

5. The certainty of fear and punishment

6. The individual's understanding of the law and the specified punishment, as well as his assessment of the circumstance in light of these variables

According to sutherland deterrance is classified in two types

1. Deterrance in General

2. Particular Deterrance

Inorder to deter others who may be inclined to commit an infraction the offender is punished.By being a witness to an offender's punishment will have profound fear of criminal prosecution.Generally people want pleasure,by making punishment unpleasant, people will avoid unlawful action that could result in that punishment. So this general deterrance is a way of setting an example to potential violators ,who being a rational being will not violate the law in order to escape such hardship.

It is by specific deterrance that government deters the defendant in order that he does not commit another crime.By punishing the defendent by the government the defendent is deterred from committing another crime they fear that they will be punished in a similar or worse way.

The Beccaria-Bentham theorem states that the rate of committing a crime is inversely related to the degree of celerity, the degree of certainty, and the degree of severity of punishment for the crime. Using these two variables as a starting point, proponents of the model of criminal deterrence based on utility maximization argue that, as the likelihood of conviction increases or the degree of punishment decreases, the number of crimes decreases. According to the consensus view the degree of certainty is more important in deterring crime than the degree of punishment.

So the offender needs to believe that they can be apprehended and punished by the system for that the threat needs to be credible and effective. It can be noted that personal experiences and police presence seem to have the greatest effect on the perception of credibility. If the it is more likely that someone is apprehended then it is more likely that the person believe the threat. Also there is a need for the punisher to communicate a reasonable

justification fot the punishment. It is observed that more rational the punishment more effective it will be.

Responsibility -

In cases where the culprit is insane there is exempt to a man from punishment. Here the responsibility of his actions is questioned. In examining the subject of punishment there a necessity to ascertain as to what extent a person is responsible for his actions. There are some theories that all evil acts are outcomes of insanity. This points to no one being responsible for their evil deeds. In the determinist conception of human conduct, man's act are not outcome of himself but of his circumstances. While if consider the view of human freedom which we already took to be correct, when a man does an act when he is fully aware what he is doing, is expression of his own character. In no way can the blame be fixed on any other person.

While the case of insanity is different, here the man is alienated from himself and his acts are not his own. Even in a sane man we must be able to recognize a certain part of conduct for which he not entirely responsible.

4.3 Reformative theory -

Reformative theory aims at reform of the offender himself, punishment is intended to reform or educate the criminal. It is the humanitarian sentiments of the present age that compel for a reformative justice. Here person is not seen as an object. The punishment is made in order make a change in the person so that the individual becomes a better human being. It is not for the goodness of others that he is punished. Reformation or education of the criminal is the aim of punishment.

The Reformative theory is supported by criminology. Criminology regards every crime as a pathological. Pathology is a mild form of insanity, an innate or acquired physiological defect. Therefore, the criminal ought to be cured, rather than punished. They ought to be treated in hospitals, asylums, and reformatories. Thus, according to criminology, crimes are not deliberate violations of the moral law. They are due to psychological defects.

It may be due to psychological defects that certain people steal, in the case of kleptomania a person is compelled to steal. By detention in asylums or treatment in hospitals they are corrected of their defects. Supporters of this view are called criminal anthropologists. Criminal sociology also considers crimes as the result of unfavorable social circumstances; inequalities, maladjustment and corruptions. Norder to prevent such crimes there is need for reconstruction of the society on the basis of justice and equality.

It can also be seen that punishment does not always reform the offender, instead it can make him more harder. While in certain situations a kind treatment may transform him to a better person. Sometimes forgiveness may bring home to the criminal his guilt and lead him to repentance and reformation. Forgiveness by the offended persons sometimes melts the heart of the criminal, and transforms his nature. It is evident that the reformative theory cannot justify capital punishment, because the hanged man cannot be reformed

According to reformative theory " Crime should be regarded as a disease,and treated as such".Victor Hugo also states that we should treat crime as a disease." Evil will be treated with gentleness, no anger. Change will be easy and beautiful".From the view point of Aristotle he saw punishment as a form of medicine.But is seen that some medicines create new diseases and are called "iatrogenic."

According to Gandhi "Hate the sin not the sinner." and that's the way the criminal justice should work. " The prisoners in the jail should be treated like the patient in the hospital." So it is this way that the offender's mental health is restored. This view is supported by progressive criminologists who describe it as the „correct remedy" and „key" to the problem of delinquency not only to reform the delinquent but also to solve many complex social problems by saving them for society as a whole.

Reformism could be seen as a rebellion against both the harshness of prison life and the loss of morality and spirituality. Here there is appeal to persuade prisoners to cease being sinful by using religious and moral appeals. The theory is grounded in religion, which teaches that each person in a community has worth and honour, and on the principle that society wants to locate the bad person who did the bad thing for the good of society, rather than to stop him from doing the bad thing again. This requires a constructive program, with the right facilities and staff, to re-educate and reorganize the criminal's attitude by giving motivation, support, ideas, and patterns of conviction.

The criminal is brought back to productive life by examining offenders background,friends,environment and mental capacity,proper treatment. While critics of this hypothesis focus on the fact that seasoned offenders don't respond positively to the reformist program.

In the reformist conception no one was raised as a criminal, hence everyone can change. From this view point crime was the result of psychological, environmental or economic forces forcing an otherwise law abiding and successful individual to behave in a way that could be changed through disipline, employment,and other means of recovery. Based on this philosophy, the goal of the theory would be to rehabilitate the convict through the individualization process. It is based on the humanistic principle that while a criminal commits a crime, he is still a moral being. In conditions where he may have committed a crime that will never be repeated, an attempt is made to change him during his imprisonment. The goal of the punishment is to bring about the moral transformation of the offender.

MODEL QUESTIONS :

Short Answer questions -

1.Define Retributive justice.

2.What is Capital punishment?

Answer the following

3.Discuss different theories of punishment.

4.Examine the advantages of Reformative theory of punishment.

5. Discuss the defects of Deterrent justice.

Essay

6. Discuss the different theories of punishment.